

Populism and the Rule of Law

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Abstract

The resurgence of populism in Europe and North America is widely thought to have placed the rule of law under pressure. But how many of the relevant developments are indeed associated with populism? And is any such association a contingent or analytic matter: Does populism inevitably threaten the rule of law, or do other conditions intervene to shape its impact? After setting out how I understand the rule of law and populism, I examine the ways in which contemporary populist discourse has challenged the rule of law through a variety of mechanisms—notably agenda setting, policy impact, influence on discretionary decisions, and convention trashing—considering the institutional and social conditions that conduce to strengthen or weaken these mechanisms in particular contexts. Finally, I consider the implications of the analysis for contemporary criminalization, assessing how many of the factors producing penal populism or overcriminalization are truly a product of populism.

INTRODUCTION

A wave of populism is sweeping across the advanced democracies in the northern hemisphere. Though in different forms and to different degrees, populism has begun to shape the political life of established democracies, including the United States, the United Kingdom, France, Germany, Austria, the Netherlands, Sweden, Greece, and Italy, as well as, perhaps most spectacularly, the more recent democracies of Hungary and Poland. These developments have overturned the conventional sense that, particular social movements aside, populism from the mid-twentieth century on has been primarily a phenomenon of countries with personalized, presidential political systems and radical inequalities, with Latin American countries such as Argentina, Brazil, Ecuador, and Venezuela providing prominent examples. Populism is, evidently, posing a major challenge to prevailing political systems, placing pressure in particular on established patterns of partisanship and hence on political parties. These factors, along with increasing reliance on directly democratic decision-making mechanisms such as referenda, raise fascinating—and urgent—questions about some very basic aspects of the rule of law and other features of modern constitutionalism.

An emerging political theory and political science literature engages with the rise of populism, seeking to explain both its origins and its implications for democracy across the globe (Brubaker 2017, Ferrari et al. 2018, Levitsky & Ziblatt 2018, Pankaj 2017, Mounk 2018, Mudde & Rovira Kaltwasser 2017, Müller 2016, Rovira Kaltwasser 2013, Runciman 2018, Urbinati 2014). But until recently, less has been written about its implications for law, or for the rule of law. Whereas political science analyses of populism have invariably noted the tendency of populist regimes to flout or instrumentally exploit the law and to manipulate legal institutions—notably courts—so as to subvert their capacity to disrupt political will, legal debates have been slower to focus on populism as a potential threat to the rule of law's integrity. This is reflected in the fact that a recent, influential collection on *Constitutionalism and the Rule of Law* (Adams et al. 2017) features only two references to populism, both in relation to Hungary, and the classic *Nomos* collection (Shapiro 1994) does not mention it at all. Rather, the rule of law has generated a scholarly field dominated by legal and philosophical analysis of the scope and meaning of the rule of law or its cousin constitutionalism, more recently supplemented by a substantial literature on the rule of law as a tool of international relations (Meuwese 2017).

But things have begun to change in the last few years as a result of some spectacular, if differing, instances of the capacity of populist politics to put the rule of law under pressure even in countries in which its position had been largely seen as secure (Bogg & Freedland 2018, Freedland 2018, Walker 2019). The media and political reaction to the English High Court's decision [*R. Miller v. Secretary of State for Exiting the European Union* (2016); later upheld by the Supreme Court (2017)] that the invocation of Article 50 of the Treaty on European Union, giving notice of Britain's intention to leave the European Union, should be subject to a parliamentary vote called forth an infamous headline describing the judges as “enemies of the people.” This personal attack was followed by a deafening failure by the then lord chancellor to distance the government from the *Daily Mail's* populist invective. Copious signals from the Trump administration in the United States—regular vilification of courts, a recent attempt to exert pressure on Britain to interfere with a standard sentencing decision (Smith 2018), and the President's expressed belief that he would have a legal right to use his executive power to pardon himself should he be successfully indicted as a result of the Mueller inquiry—help to explain lawyers' emerging concern with populism, and with the mentality of populist leaders, as distinctive threats to constitutionalism in general and to courts in particular. This concern has recently found voice in a lecture by Justice Susanne Baer (2019) of the German Federal Constitutional Court, in which she identified a wide range of threats to the rule of law and the independence and integrity of courts across both Europe and

North America, with particular emphasis on the recent compromising of judicial independence in Hungary and Poland. Her lecture uttered an impassioned and reasoned rallying cry for citizens to speak up for constitutionalism and to defend the values through which the tyranny that led to the Second World War was laid to rest.

In this article, I try to give some further analytic focus to these emerging concerns by asking three questions. First, how many of the recent worrying developments in terms of apparent erosion of the rule of law in Europe and North America are indeed associated with populism? Second, where such an association can be established, is it a contingent or analytic matter: Does populism inevitably threaten the rule of law, or do other conditions intervene to shape its impact? Are some connections analytic but others contingent? And third, what can we learn from this about the scope for minimizing the impact of rising populism on the rule of law?

In tackling these issues, I stray as a criminal lawyer into terrain primarily occupied by political scientists, political and legal theorists, and constitutional lawyers. I do so with a very particular concern, and one that will help me to carve out a manageable patch of territory within an enormous field. In particular, I am concerned with the way in which the design of some forms of political system, under conditions of declining stable partisanship, has rendered the law-making process highly responsive to populist considerations, whether through resort to mechanisms such as initiatives and referenda or simply through politicians' openness to popular concerns in their shaping and conduct of the legislative agenda, irrespective of the commitments made on electoral platforms and hence carrying democratic authority. Legislative populism, if I can put it in that way, has long been notable in relation to criminal law, and a relevant comparative literature now considers how this change itself relates to broad shifts in political economy. A substantial part of this literature on changing patterns of criminalization and punishment—including a literature on the criminalization of migrants (Aliverti & Bosworth 2017)—is framed in terms of “penal populism” or “populist punitiveness” (Bottoms 1995, Cavadino & Dignan 2005, Lacey 2008a, Loader & Sparks 2017, Pratt 2006). The possibility broached in this literature—that differently configured political systems are more or less responsive to penal populist concerns—in turn opens up interesting general questions about whether these differences affect their capacity to absorb populist pressures without compromising values such as the rule of law and civil liberties.

The article proceeds as follows. In the first two sections, I set out, respectively, how I understand the rule of law and populism for the purposes of my analysis. In the third section, I consider whether there are analytic links between populism and an erosion of the rule of law. In the fourth section, I consider a range of contingent links and examine the institutional and social conditions that conduce to strengthen or weaken them. In the final section, I consider the implications for contemporary criminalization, assessing how many of the factors producing what scholars have called penal populism or overcriminalization (Husak 2007) are truly a product of populism.

APPROACHING THE RULE OF LAW

The vast literature on the rule of law has until relatively recently been preoccupied with a cluster of debates about its conceptual contours and scope. We can distinguish four broad approaches. First, some scholars have taken a formal or thin conception of the rule of law or legalism—a position most influentially set out by Raz (1979). In Raz's conception, the rule of law inheres in a cluster of formal values such as clarity, nonretroactivity, publicity, universality of reach, possibility of compliance, and congruence between expressed law and official enforcement. Each of these may be achieved to higher or lower degrees by particular legal systems. In a striking metaphor, he imagined the rule of law as a sharpener of law's “knife,” hence expressing a distinctive and genuine “virtue” of law's modus operandi of, as Fuller (1964, p. 106) put it, “subjecting human conduct to

the governance of rules.” It makes the law sharper and hence more effective, but the law’s “sharp knife” may also be used for substantively immoral purposes. This formal conception of the rule of law is also dominant in a substantial public choice literature that ponders the conditions under which the rule of law is in equilibrium and hence a stable sociopolitical institutional framework and form of association (Holmes 2003). In this literature, the possibility that the rule of law can be used “as a political weapon” (Maravall 2003) is contemplated as one that presents no conceptual tension or contradiction.

Second, some scholars have seen the rule of law in procedural as well as formal terms. For example, in Waldron’s (2008, 2011; cf. Shklar 1964) view, the rule of law expresses not merely formal constraints but procedural commitments that imply a certain interpersonal attitude. A commitment such as equality before the law discloses a normative view of respect for persons as agents who must not only be informed in advance of the content of legal norms, so as to have the opportunity to adjust their conduct accordingly, but also have a role in speaking and being heard by a neutral tribunal in any legal process in which they are concerned. Waldron here builds on Fuller’s (1964) conception of eight canons of “the inner morality of law”—a set of formal tenets to which Raz also subscribes, but which Fuller saw as carrying moral quality as a mode of governance, as more fully elaborated by Waldron.

Third, others have been inclined to conceptualize the rule of law in much more ambitious, thick, or substantive terms. In the view of scholars like Tamanaha (2006, 2012)—but also of influential judges like Bingham (2010) and Baer (2019)—the rule of law should be seen in terms not merely of the formal and procedural values enunciated by the first two conceptions but also of a wide range of institutional arrangements rooted in normative commitments, many of them strongly associated with liberal democracy. In this substantive conception, concomitants of a rule of law worth the name include constitutionalism quite generally; a separation of powers or system of checks and balances; human rights—certainly civil and political, perhaps also economic and social; judicial review of at least executive, and perhaps legislative, power; adequate access to justice; and, ideally, an international legal order capable of insisting on the sway of the rule of law and human rights. Although these scholars recognize that history presents many examples of evil, unjust, or oppressive things being done in the name of law and in conformity with the formal precepts of legalism, in their view these appeals are distortions of the true concept of the rule of law. If law is used merely as a means to an end, the distinctive mode of mutually respectful, agency-recognizing association reflected in the ideal of the rule of law is not present; if it is used for ends that are discriminatory, oppressive, arbitrary, or otherwise unjust, this counts as abusive or discriminatory legalism or autocratic constitutionalism (Landau 2013, Scheppele 2018) rather than a genuine instance of the rule of law. As will be evident, there is a close kinship between this debate within rule of law scholarship and the longstanding debate about the respective strengths of positivist and natural law conceptions of law (Lacey 2008b).

Fourth, some scholars have resisted the demand to conceptualize the rule of law in terms of either its form or its content. While recognizing that many of the procedural and institutional arrangements canvassed in the first three traditions will indeed be central to rule of law ideals and practices, scholars like Krygier (2009; 2017a,b,c; 2019) have taken a teleological or functional approach to the rule of law as a set of ideals and arrangements oriented to tempering power. Crucially, this will involve arrangements geared to not only limiting, constraining, or rendering power accountable but also enabling and strengthening power, not least by enhancing its legitimacy. A distinguishing feature of this cluster of approaches is their contextualism: On a functional approach, it is a given that, although genuinely representing an ideal, and recognizing the moral value of the rule of law as a “mode of association” between people (Postema 2014, p. 24), its content, what the rule of law ideally requires, and the institutional arrangements that are needed to

give it effect will vary with time and space and will be shaped by a range of cultural, institutional, and political conditions (see Lacey 2007, Loughlin 2018). These approaches, like substantive approaches, are sensitive to the danger that the rule of law may present a superficial form rather than being fully embedded in conventions and internal attitudes. They accordingly resist any “idealism/realism” dichotomy (Adams et al. 2017) and insist that the values to which the rule of law aspires can be met only in terms of a close understanding of how particular social and political systems work.

In comparative terms, for example, Cheesman’s (2015, pp. 261–63) analysis of the rule of law (and its abuse) in Myanmar presents a distinctive contrast between the rule of law, on the one hand, and law and order as conceived by the military regime, on the other. He points out that this differs substantially from the way in which critical engagement with law is constructed in what might seem the analogous case of Thailand, with significant consequences for the space available for the rule of law to operate as an oppositional discursive frame within civil society in the two countries. And in a historical analysis of the development of the rule of law in England, I have argued (Lacey 2007, 2008b) that we need to appreciate the role of context in illuminating not merely the concept of the rule of law but also its purpose, function, or social role, along with the preconditions under which particular conceptions of, or dispositions toward, the rule of law are likely to take hold. For example, in a highly centralized and authoritarian system such as the monarchy of early modern England, it is not clear that the operative concept of the rule of law can intelligibly be read as implying the universal application of law, reaching even to the sovereign. Certainly, a notion that the rule of law proscribed the exercise of arbitrary power by the monarch has roots stretching back far earlier than modern constitutionalism (Loughlin 2018; Palombella 2009, 2010; Reid 2004). But a broader notion of the universality of law’s reach—central to modern notions of the rule of law—was the object of long political contestation and took centuries to be accomplished. We can acknowledge that the eighteenth-century conception of the rule of law in England was different from that in the twelfth century without concluding that no such conception existed; indeed, as in Cheesman’s (2015) study of contemporary Myanmar, it existed in part as a critical conception that informed the political conflicts that shaped modern constitutional structures.

In other cases, it is not so much the development of political ideas as the practical preconditions for realizing them that underpin the changing contours of the rule of law. An example here would be the tenet, widely shared in today’s constitutional democracies, that the law should be publicized and intelligible. Even today, this ideal is difficult to realize. But it would have been a far more distant ideal in societies with very low levels of literacy and without developed technologies of communication such as printing, let alone digital technology. The ideal that official action should be congruent with announced law must have a significantly different meaning in today’s highly organized, professionalized criminal justice systems than in a system like that of England prior to the criminal justice reforms of the early nineteenth century—a system in which criminal justice enforcement mechanisms were vestigial, with no organized police force or prosecution and much enforcement practice lying in the hands of lay prosecutors, parish constables, and justices of the peace (King 2006, Langbein 2003). Institutional features of eighteenth-century English criminal justice also had significant implications for the law’s achievement of coherence. Whereas the system of precedent conducted to both substantive coherence and even-handedness in enforcement, the relatively disorganized mechanisms for appeal and law reporting gave rise to significant regional variations—particularly in relation to criminal adjudication handled by lay justices rather than assize judges. Hence, for many decades, discretionary arrangements, inimical to today’s view of adequate levels of coherence and congruence, were regarded not merely as acceptable but as consistent with respect for the rule of law (King 2000). The rule of law was embedded within a

highly personalized model of sovereign authority, one in which the discretionary power of mercy was a core rather than a penumbral feature (Hay 1975, Thompson 1975).

Ideals themselves are constrained by existing institutional capacities. To take some recent examples, judicial review—now seen as a core component of the rule of law in western democracies—is a relatively new invention in most of them. Only the United States constitutionalized this arrangement from the start, with many European countries adding it in their nineteenth-century constitutional settlements and the United Kingdom assembling it, and in quite a limited way, only in the twentieth century. The first steps toward institutionalizing an international rule of law emerged only in the twentieth century, and that of an ambitious, human rights-oriented international law, only after the Second World War. All of these conceptions of the rule of law are born of their environment: The ideal takes its complexion both from perceived problems—arising from war, revolution, atrocities, or ideological struggles—and from perceived institutional capacities. And this is key to unraveling the complex relationship between populism and the rule of law.

APPROACHING POPULISM

Like the literature on the rule of law, that on populism falls along a spectrum between broadly positive work (mainly in political science, for example, Levitsky & Ziblatt 2018, Mudde & Rovira Kaltwasser 2017) and interpretive/normative work (mainly in political and social theory: Ackerman 2015, Mounk 2018, Müller 2016, Urbinati 2014). There are marked differences of view on whether populism is to be feared or applauded; a wide ideological spectrum between both those supporting and those fearing populism, with the former reaching from Carl Schmitt to Ernesto Laclau and Chantal Mouffe [Laclau 2005, Laclau & Mouffe 2001, Schmitt 2007 (1927)]; varying approaches to the conditions that spawn populism; and specific disagreements on the strength of what Mudde & Rovira Kaltwasser (2017) call the “elective affinity” of populism with mechanisms of direct democracy such as referenda. But there is broad agreement on the main conceptual components of populism as a form of political discourse. Essentially, populism is a highly moralized approach to politics that pitches a homogeneous “we the people,” often conceived in ethnic or national terms, embodied in a leader who speaks for and expresses the will of that undifferentiated collectivity against a presumptively “corrupt”—hence the tendency to conspiracy theories in this genre of political discourse—“elite” (as well as against “outsider” minorities of various kinds). Populism is

a thin-centered ideology that considers society to be ultimately separated into two homogeneous and antagonistic camps, “the pure people” versus “the corrupt elite,” and which argues that politics should be an expression of the volonté générale (general will) of the people... (Mudde & Rovira Kaltwasser 2017, p. 6, emphasis in original)

This implies that the particular shape of the interpretive frame or mental map through which social actors comprehend the political world in a society influenced by populist discourse will be determined by a range of contingencies and can incorporate conflicting ideologies. Hence, populism may take left- or right-wing forms; moreover, populists may aspire to realize some of the values that also characterize not just democracy but even—as in the case of forms of egalitarianism—liberalism. Yet populism is fundamentally at odds with liberal democracy because, for all that it takes off from a notion of popular power and sovereignty, it is monistic rather than pluralistic, monarchic rather than diarchic, exclusive rather than inclusive, with a vertical rather than a horizontal vision of power. Given that the populist leader, though only a part of the whole, speaks for that whole, it is not even clear that populism tends in a deep sense to popular participation. Indeed, most commentators agree that under certain conditions, populist leadership tends toward autocracy. In relation to Europe and North America, a particularly important aspect

of populism's antipluralism is its hostility to a conception of politics seen in terms of competition between and compromise among interests. Hence, there is a tension between populism and multiparty democracy—indeed, between populism and parties as legitimate political actors with discrete power.

Yet although, as Urbinati (2014) puts it, populism “disfigures” democracy (cf. Müller 2016, p. 34), it arguably arises out of some irresolvable tensions within the liberal democratic ideal itself. Populism is, as Urbinati (2014, p. 135) observes, in some sense “parasitical” on representative democracy, from which it takes its image of the sovereign people, but it reacts against the inevitable tension within liberal representative democracy between the ideal of popular representation and the rules and conventions, such as constitutional arrangements, human rights, and judicial review, which constrain the power of popular sovereignty. Indeed, as Bobbio [1987 (1984); cf. Canovan 1999, Rovira Kaltwasser 2014, Walker 2019] put it, populism arises in part from the “broken promises” of democracy itself: “The people” can never truly rule; precisely because of heterogeneity and conflicts of value and interest, some voices always prevail. Hence, “[p]opulism exploits the tensions that are inherent to liberal democracy, which tries to find a harmonious equilibrium between majority rule and minority rights. This equilibrium is almost impossible” (Mudde & Rovira Kaltwasser 2017, p. 82). But this also implies a contradiction at the heart of populism, and one that further illuminates its tendency toward authoritarianism and against democracy. To preserve its highly moralized symbolic fantasy of a pure homogeneous “we the people,” the real voices of dissent and variation must not be heard too loudly. Hence, although populists are not against constitutions as such, and a populist leader can indeed colonize the state and the legal system by enacting a populist constitution, the stability of such a settlement is constantly threatened by both the risk that it will produce the wrong outcomes, from the populist leader's point of view, and the risk of pluralism reasserting itself, leading to constitutional conflict (Müller 2016, pp. 37–39).

Moreover, the perceived deficits and failures of liberal democracy to represent an adequate range of interests have been a significant spur to populism, particularly in Europe, where the impulse of the reconstruction of democracy after the Second World War was to build structures to limit the sway of popular will, not least in its capacity to encroach on minorities (Müller 2016, chapter 3; see also Bogg & Freedland 2018, Kochenov 2017, Lindseth 2017). As Mudde & Rovira Kaltwasser (2017, p. 116) put it, “In a world that is dominated by democracy and liberalism, populism has essentially become an illiberal democratic response to undemocratic liberalism.” The populist resurgence has undoubtedly been exacerbated by two further large facts. First, the fundamental restructuring of advanced political economies since the 1970s in the wake of deindustrialization and under conditions of intensifying globalization has implied a dramatic decline in the relative economic and social standing of a large group and a form of polarization and economic exclusion that has fostered widespread resentment and found expression in forms of identity politics such as nationalism and nativism. Second, elected governments have proved ineffective in countering these trends, and indeed are widely seen as having encouraged or exacerbated them by developing neoliberal economic policies focused on market competition in a globalizing economy. As the case of Latin America shows, long-running radical social and economic inequalities, when combined with a history of democratic governments, can fuel populism by undermining the perceived legitimacy of governing elites—a situation that now prevails in both Europe and the United States. The financial crisis of 2008 further damaged the standing of politicians because austerity policies and retrenchment of public services furthered polarization between winners and losers in the knowledge economy (Iversen & Soskice 2018, pp. 216–53). In the European Union, these developments were further exacerbated by the imposition of the rigid Euro system on economies with markedly varied institutional structures and, hence, comparative advantage, implying fiscal

constraints across the Union that had originally been conceived in terms of the production regime and political imperatives of Germany (Carlin & Boltho 2013, Hall 2014). This prompted the economic crises of the Southern European nations, followed by bailouts that were perceived as punitive and discriminatory. The refugee crisis added a further impetus to what was already a growing projection of resentment onto outsiders among those who had lost out, fueling a vituperative and widespread populist nativism and anti-immigration sentiment.

It is important to remember, of course, that widespread though the emergence of populist political discourse, parties, leaders, and agendas has been in both Europe and North America, the number of countries in which we can genuinely talk of a populist system of government remains, for the moment, small. The multiparty, parliamentary systems of Europe provide some protection, as compared with presidential systems (Mudde & Rovira Kaltwasser 2017, p. 75), and the orientation to consensus and bargaining of the sectoral Proportional Representation systems of the coordinated market economies (Hall & Soskice 2001; Lijphart 1984, 1999) provide further protection. As Bogg & Freedland (2018) put it, although the popular democracy-limiting and technocratic tendencies of the European Union and the highly integrated postwar constitutional settlements of countries like Germany may themselves have indirectly stoked populist resentment, they have also, as compared with the decentralized systems of liberal market economies like the United Kingdom (Hall & Soskice 2001), provided some protection for the rule of law, for example, through constitutional courts (Bogg & Freedland 2018; cf. Ackerman 2015). But the economic changes canvassed above have begun to erode the structure of the party system by fragmenting the sectoral interests or pillars on which the political systems of these countries depended. The limited extent to which the model of party competition, compromise, and pluralism, along with the liberal democratic constitutionalist mentality that institutionalizes it, has taken root in the postcommunist regimes of Central and Eastern Europe (Krygier 2017a) perhaps explains why the starkest European examples of populism come from that region. The Orbán regime in Hungary is one example. The Polish government has also moved in a substantially populist direction, and the signs accumulate that, limited though US presidential powers over domestic policy have often been taken to be, Donald Trump's populist style of leadership is having a significant effect on US institutions beyond the presidency.

But the limited number of cases in which the hold of populism on political actors and institutions would justify our speaking in terms of a populist regime does not imply that populism has only limited relevance for politics and, potentially, for the rule of law in Europe and North America. For—and in spite of its capacity to have, as one political discourse on the democratic scene, positive as well as negative effects on the quality of democracy—populism can affect the conduct and integrity of liberal democratic politics in a range of ways short of capturing the governing regime. The power of populism should therefore not be counted merely in terms of the electoral votes a populist party or leader obtains but also in terms of “the ability to put topics on the agenda...and the capacity to shape public policies” (Mudde & Rovira Kaltwasser 2017, p. 98). The briefest survey of recent political developments in Europe and North America provides ample evidence of these agenda-setting and policy impact effects. In Britain, although the genesis of the referendum on EU membership cannot exclusively be laid at the door of populism, both the result and the impact of Nigel Farage's populist, nativist UK Independence Party (UKIP) on the conduct of the campaign, particularly in terms of stirring up anger with political elites, distrust of experts, and hostility toward migrants, have all the hallmarks of populism. More generally, British immigration policy since (at least) 2010 has been hugely shaped by populist anti-immigration sentiment. The threat to some (particularly Conservative) parliamentary seats from UKIP, alongside the longstanding anti-European Union sentiment of a small core in the Tory Party, helped to shoehorn a range of populist policies onto the government's agenda, as well as influencing

the tone of political discourse and engendering a pervasive distrust in transnational and international governance that is a natural concomitant of nationalist resurgence. Across the channel in Western Europe and the Nordic region, some countries' Proportional Representation electoral systems may facilitate the constitution of small, issue-based (rather than sectoral) or interest-based parties. Nationalist, anti-immigrant, anti-outsider parties, such as the Front National in France; the Danish People's Party; the Alternative for Germany (AfD) party; and equivalents in the Netherlands, Austria, and Sweden, have begun to put pressure on the established parties, with the Front National leader Marine Le Pen reaching the second round of the last French presidential election. Further east, in countries like Hungary and Poland, we have arguably seen a transition from populist agenda setting and policy impact to—at least in the case of Hungary—a fully populist regime. As we see in the following sections, it is these diffuse agenda-setting and policy impacts of the growth of populism that pose some of the most urgent threats to the rule of law in Europe.

ANALYTIC LINKS BETWEEN POPULISM AND THREATS TO THE RULE OF LAW

Populism, then, is an ambivalent political discourse: It emerges from one set of values central to the aspirations and origins of liberal representative democracy, and under certain circumstances, the infusion of populist discourse into democratic debate can have positive effects in inter alia encouraging participation from groups alienated from politics or, in its left-wing form, facilitating egalitarian social policies, as in several Latin American cases, notably Brazil. There is, nonetheless, a straightforward analytic connection between the populist style of politics and an impatience with the rule of law (Urbinati 2014, pp. 13, 129, 153). This is quite simply because a populist leader claims, in him- or herself, to express the will of the pure people, and any institutional structure that questions that political expression, tends to place constraints on its execution, or divides the people's power via checks and balances is liable to come into conflict with the populist leader. Carl Schmitt is a familiar point of reference here (Mudde & Rovira Kaltwasser 2017, p. 18). The populist leader's claim to express the people's will does not brook any system of checks and balances such as that envisaged by modern constitutionalism, for the latter is premised on a pluralist view of politics. Moreover, the polarized and moralistic, friend/enemy, pure us/corrupt them tenor of populism tends to erode the usual norms of civility—"to flout the law...to revel in norm-breaking, coarseness and incivility" (Ostiguy & Roberts 2016, p. 43) within political discourse. Accordingly, both constitutional rights and the institutions that protect them—notably the judiciary, but also the media—are often targets of populist criticism (Mudde & Rovira Kaltwasser 2017, p. 95; Müller 2016, p. 36). Müller (2016, pp. 8, 28) sees populism as a form of exclusionary identity politics that tends to undermine democracy and identifies three distinct manifestations of its logic: "a kind of colonization of the state, mass clientelism as well as what political scientists sometimes call 'discriminatory legalism,' and, finally, the systematic repression of civil society."

Populists do not necessarily eschew constitutionalism altogether. But populist constitutionalism is a tricky matter, because the creation of separate and mutually checking governmental institutions necessarily gives rise to the possibility of conflict between them—a conflict that is inconsistent with the populist monarchic claim to express the people's will. Hence, courts in particular are liable to populist suspicion, the hostility stemming from their capacity to constrain political power being reinforced by their standing as elitists or experts and their distance from "the people." Here, the availability of a purely formal conception of the rule of law—the rule of law not merely as useful "knife" (Raz 1979) but even as "weapon" (Maravall 2003)—may become a tool in the hands of the populist constitutionalist. Indeed, the rule of law not only constrains but enables

governmental power, and populist governments need law as much as any other regime. Hence, courts and other checking institutions need to be co-opted, as they may be by court packing; intimidation of the judiciary; or other mechanisms, such as those we have recently seen deployed in Poland and Hungary. And once institutions such as the judiciary have been commandeered or co-opted, we see what scholars have called, variously, forms of “abusive constitutionalism” or “discriminatory” or “autocratic legalism” (Maravall 2003, Müller 2016, Scheppele 2018), in which the law itself is used to persecute minorities, to punish dissent, and to enforce executive power discursively legitimized as the people’s will. This can take the form not only of a corrupting politicization of the law and the judiciary but also of a “judicialisation of politics,” where the courts or other legal processes such as impeachment are used for political purposes (Müller 2016). For not only adherents of substantive, thick conceptions of the rule of law but also those who take a functional view of the rule of law as inherently concerned with tempering power (Krygier 2009; 2017a,b,c), this amounts to a corruption of the rule of law, what we might call rule by law rather than the rule of law, although the specific form that subversion takes will vary across time and place (Cheesman 2015, Lacey 2007).

CONTINGENT LINKS BETWEEN POPULISM AND THE SUBVERSION OF THE RULE OF LAW

The analytic tensions between populism and the rule of law that I canvassed in the last section realize themselves primarily in populist regimes. Yet they are also relevant to the much larger range of countries in which populists do not control government but in which populist political movements have some significant presence: within the government—as in the case of the United States under the Trump presidency; as nationalist or otherwise populist parties, as with the French Front National or the German AfD; as powerful factions within major parties, as with the vehemently anti-European Union wing of the British Conservative Party; or even as popular social movements, such as the Tea Party, Vote Leave, or Occupy. And in these countries, whether and how the links between populism and erosion of the rule of law announce themselves depend on many contingencies. Hence, any full understanding of these links must be system and context specific. The vulnerability of any system to populist-inspired erosion of the constraints on power offered by the rule of law will depend on factors such as political structure—notably the electoral system and the internal rules of its political parties that govern matters such as candidate selection and the election of a leader; the standing and strength of the professional culture of its judiciary; and the capacity of its legal, political, and economic institutions to resolve social conflicts and to command reasonable levels of respect—itself shaped by the geopolitical and macroeconomic environment. As Bogg & Freedland (2018, pp. 11–12, emphasis in original) aptly put it, “We need to explore the *complementarities* between political and legal institutions in the domain of fundamental rights, rather than to view the problem in terms of a simple institutional trade-off between ‘democracy’ and ‘liberalism.’” It hence becomes possible to say something at a general level about the ways in which these very common, increasing, and partial forms of political populism may affect the robustness of the rule of law even in countries whose systems are fundamentally shaped in terms of liberal democratic values. In this section, I distinguish four different mechanisms, giving examples of each from Europe and the United States.

We have already mentioned the first two: those of agenda setting and policy impact. A small populist faction within a large party, a small populist party, or a powerful populist who holds elected office may be able to have a decisive impact on a country’s political agenda and in specific policy terms. Probably the most spectacular example here is Donald Trump’s power to set an isolationist agenda through trade and other aspects of foreign policy in the name of “Making

America Great Again”—not to mention to shape immigration policy and practice in decisive and human rights-threatening ways (Levitsky & Ziblatt 2018, Litman 2018). Perhaps yet more worrying is the diffuse, yet hard-to-measure, impact of his populist and court-disrespecting rhetoric on practices at state and local levels in relation to matters such as voter registration, redistricting, judicial appointments, and indeed general law interpretation and enforcement (Scheidlin 2018, Zengerle 2018). The US constitutional structure that also happens to give him a constitutional right to nominate Supreme Court Justices and hence to shape the political complexion of the Court for the next three decades—as illustrated by the appointments of Justices Gorsuch and Kavanaugh—exemplifies a very particular vulnerability in the US system. Recent US politics reveal how much the rule of law depends on self-restraint, on the diffusion of a culture of respect for law, and on respect for the institutional integrity and independence of legal institutions, which it is impossible to fully embed within a constitution itself.

In Europe—both in the European Union as a transnational political entity and also in particular nations—the inability to find a stable solution or even a broad consensus about the refugee crisis is another good example of both the agenda-setting and policy impact of populist politics via erosion of the authority of the main political parties. And in Britain, the fear among members of parliament of the threat from UKIP in leave-voting constituencies has almost certainly shaped the Westminster Parliament’s difficulty in reaching a compromise agreement on how to redefine Britain’s relationship with the European Union. Such impacts come about in part through corrosive attitudinal changes. For example, evidence mounts that the Leave campaign exhibited a characteristically populist contempt for the electoral laws within which it should have been working (Graham-Harrison 2018), while senior members of the government, including the former foreign secretary, have cast doubt on whether it will be government policy to respect all aspects of existing treaty obligations—notably financial obligations—on exit from the Union (Freedland 2018).

Two further potential and diffuse impacts of what we might call partial populism on the rule of law are also worthy of consideration. These are, first, the capacity of populism to affect the exercise of discretionary powers and, second, the upshot of what I call convention trashing. Taking the example of discretionary powers, it is perhaps most useful to focus on judges. It is widely recognized that judges enjoy a range of discretionary powers and considerable interpretive latitude. They are also, to state the obvious, human beings who are subject to the usual range of pressures, albeit that their institutional role and their professional training and culture equip them, ideally, with some very particular capacities for independent judgment. It is hard not to worry, nonetheless, that incidents such as the infamous British *Daily Mail* “Enemies of the People” headline mentioned above, or Donald Trump’s personal attacks on judges and law officers, will have some impact in inhibiting the full exercise of that independence. This sort of impact on discretionary powers is, admittedly, hard to track empirically (though see McCarthy 2018). However, there is some evidence from the more discretionary aspects of judicial decision making that gives it both indirect and direct support. One example might be thought to be the upward travel of sentencing severity in both the United States and the United Kingdom during the era of so-called penal populism (Garland 2001a,b), a not-inconsiderable amount of which has taken place in the absence of any change in sentencing guidelines or statutory maxima. Another is a recent study (Brandes 2019; see also R. Girard, unpublished doctoral dissertation chapter) of the discretionary practice of domestic courts’ citing international or transnational law, which suggests that in countries in which populist hostility to supranational legal orders is strong, we may see a decline in such citations—a matter of particular concern because of the capacity of international and transnational law to provide extra protection for the rights of minorities, to strengthen pluralism, and to counter polarization. This argument applies, a fortiori, to the wide discretionary powers of a range of law enforcement and regulatory agencies.

Moving to the fourth potential upshot of partial populism for the rule of law, convention trashing, we return to a theme that arose in our discussion of the rule of law: that the fullest expression of its aspiration—and, we might add, of constitutionalism more generally—depends upon a set of attitudes and an accepted mode of association that cannot be captured or completely enforced by rules, however elaborate. This implies that the internalization of the normative ideals associated with the rule of law by those who exercise power is key to its robustness. This is particularly evident in relation to the elaborate conventions that surround the operation of any constitution. However, as we have seen, populist attitudes are impatient of constraints. And where conventions or understandings are casually broken by populists, these can be very much harder to repair, and the relevant actors very much harder to discipline or restrain, than in the case of more blatant breaches of established constitutional norms. Recent examples include Donald Trump's brazen flouting of the long-established conventions about conflicts of interest and nepotism, by failing to effectively separate himself from his business interests; his incontinent invective on Twitter; and his decision to move a large part of his family into the White House in positions of very significant executive power (Litman 2018). They also include the revelation, arising from recent events in Hungary and Poland, that although compliance with the rule of law is one of the conditions of accession to the European Union, continued compliance is a convention in the sense that it depends on self-restraint, with the Union possessing only relatively blunt tools to discipline countries that dismantle key aspects of it, notably the independence of the judiciary (Kochenov 2017, Scheppele 2017). The Article 7 infringement procedure recently invoked against Poland and Hungary could possibly lead to sanctions but may be liable to feed the very populism that underlies the problem it seeks to address. In the international perhaps yet more than the national sphere, the robustness of norms of legality, as of norms such as human rights, is substantially dependent on voluntary compliance.

BEYOND POPULISM: CRIMINALIZATION AND THE RULE OF LAW

The growth of populist sentiment and of populist political actors in Europe and North America has, then, presented several challenges to the rule of law, and Justice Baer (2019) is right that extreme vigilance is needed to protect legal institutions and in particular independent judiciaries in this climate. In this context, it is interesting to consider whether the election of judges that prevails in many US jurisdictions protects judicial independence by means of the democratic legitimacy that elected judges can claim, or implies their vulnerability to populist influence because of the electoral pressures to which it subjects them (as suggested by case studies on sentencing: Bogira 2005). However, as Baer (2019) also notes, it is important to acknowledge that not all threats to the rule of law and to judicial independence come from populist politics. So it is relevant to ponder the question of how relatively important populism has been in the development of criminalization in recent years, given that scholars concerned with a perceived upward trend in penal severity and an ever more extensive legislative resort to criminalization, particularly in the competitive, liberal market political economies of Britain and the United States (Lacey 2008a), have often referred to this as a form of penal populism (Pratt 2006; cf. Bottoms 1995).

Certainly, we can find examples that fit the conception of populism adopted in this article. For instance, we could see the origins of California's "three strikes and you're out" law, which was a product of California's system of direct democracy via citizen-initiated propositions (Zimring et al. 2001), as exemplifying a certain aspect of populism as direct responsiveness to popular will. And we could see a range of legislative initiatives in England and Wales—the increasing tendency to resort to ever-more-specific criminal prohibitions to address particular social problems, from corporate manslaughter to antisocial behavior via dangerous dogs—as expressing a concern to

show responsiveness to popular demands. Indeed, one might even see criminal law as increasingly responsive to the fragmented demands of a diverse collection of identity politics around single issues, each of them constituting a discrete outsider or enemy (Hall et al. 1978). More obliquely, we might see the concern with security that underlines the popularity of criminalization (Loader & Walker 2007, Neocleous 2008, Ramsay 2012, Zedner 2009) as itself a product of a certain kind of disenchantment with the efficacy of government.

But penal populism of course predates the populist resurgence that has been my main focus, and it has deep historical and institutional roots. Much of the drive for criminalization and penal severity comes not from populism, as discussed in this article, but rather from fear and insecurity attendant on crime and perceptions of social disorder, that fear and insecurity being projected onto outsiders in the form of offenders. There is a structural analogy with populism here; but the outsiders are not necessarily the same as the enemy outsiders on which populism currently has its focus. Indeed, they are disproportionately members of the groups whose economic dislocation and exclusion have fed the populist surge of recent years. So it is probably more accurate to see overcriminalization (Husak 2007) and penal severity as themselves products of some of the larger economic, social, and political forces that have created populism itself: perceived weaknesses in national state sovereignty, prompting a resort to criminalization as one of the few tools of governance still within nation-state control; social conflict; a failure to ensure that an adequate majority feel that they have a stake in the prevailing order (Hochschild 2016, Wuthnow 2018); and persistent inequality. Likewise, in a self-reinforcing cycle, the failures of political leadership that stoke populism via distrust in government are in part a product of the erosion of party strength produced by populism itself. The causal linkages here are complex. For example, arguably one of the most urgent threats to the rule of law in the field of criminal law in England and Wales lies in the steady erosion of access to justice implied by swingeing cuts to court services, to the police and the Crown Prosecution Service, and to legal aid, which have been an offshoot of austerity policies (Bingham 2010, Secret Barrister 2018). And austerity politics have both stoked populism, by exacerbating economic exclusion and polarization, and been fed by populist resentment of the reach of welfare benefits to outsiders.

There are, however, two areas in which developments in criminalization might be thought to have been shaped by populism in the sense under consideration here. The first of these is antiterrorism law, which in the United Kingdom as in several other countries increasingly deploys the very notion of an alien enemy within on which populism feeds (cf. Jakobs 1985). Over the last two decades, we have seen a vivid case of the normalization of powers previously seen as exceptional, with a substantial amount of legislation directly or indirectly geared to the criminalization of terrorism. The extraordinary events of September 2001 are, of course, an important part of the genesis of this new legislative concern with the criminalization of terrorism. The antiterror reaction has created a wave of criminalization—particularly of what we might call preliminary or pre-inchoate activities—that significantly expands the boundaries of criminal law. In doing so, it adds to police and prosecutorial power; weakens defense lawyers; curtails the scope of judicial discretion; and, in some of its more radical adjustments to normal standards of procedure, directly undermines the rule of law by deploying some of the methods of terror itself. And beyond domestic criminalization, evidence accumulates that a certain lawless mentality increasingly pervades US, British, and many other countries' conduct of foreign policy, notably in terms of the use of drone attacks and practices of rendition (Scheppelle 2013, Waldron 2010).

Implicit in the structure of many of these terrorism offences we see something akin to “enemy criminal law” (Jakobs 1985) or character responsibility (Lacey 2016, chapter 5): the idea that, on top of committing or planning acts of violence, there is something additionally and intrinsically wrong about being a certain kind of person, engaged in a certain kind of activity—an aggravation

of blameworthiness that justifies a special criminalization regime. Notwithstanding the House of Lords' finding that one of the most egregious, and populist, aspects of the counter-terrorism legislation (its application of indefinite detention exclusively to foreign nationals) contravened the Human Rights Act [*A and Others v. Secretary of State for the Home Department* (2004)], much of the counterterrorism legislation of recent years—notably the control order, implemented as a result of the House of Lords' decision—is redolent of the criminalization of status. The implicit assumption is that there is a finite number of bad people who are terrorists, and if we can simply detain or take out enough of them, the world will be a safer place for those of good character, who alone deserve the full protections of the rule of law. But although these themes are reminiscent of aspects of populist discourse, they can hardly be said to have been driven by populist politics alone; after all, they have been enacted, albeit with differing forms of intensity, widely across the world in response to the perceived threat of transnational terrorism.

The other, and related, area of criminalization that on the face of it has been shaped by populism is so-called crimmigration (Strumpf 2006). This refers to the increasing resort to criminalization or to quasi-criminalization (e.g., via administrative detention) as a way of disciplining, excluding, and indeed expelling migrants or those seen as presumptively unentitled (Aas & Bosworth 2013, Ackerman & Furman 2014, Aliverti 2013, Aliverti & Bosworth 2017, Anderson 2013). The blurring of the boundaries between administrative and criminal law, notably in the case of immigration detention, and of the boundaries between civil and criminal law, as in the use of a range of civil, typically preventive, orders whose breach nonetheless implies criminal or quasi-criminal liability, is of particular concern in terms of the threat to migrants' and asylum seekers' human rights but also of erosion of the rule of law quite generally (Bogg & Freedland 2018; Zedner 2013, 2016). Yet even here, the causation may be somewhat more complex than at first appears. As Barker (2018, p. 53) has argued in a powerful recent analysis of the emergence of penal nationalism in relation to migration in Sweden, "problems with pluralism, ethnic diversity and immigration are much more mainstream, long lasting and institutionalized than the current focus on populism allows." So although the emergence of penal nationalism in countries such as Hungary and Poland may be genuinely driven by populism (Haney 2016), this is not necessarily so: Each case requires careful interpretation. In the case of Sweden, the clue to the remarkable reversal of the country's traditionally open immigration policy represented by the closing of the border with Denmark in late 2015 is to be found in a concern to protect the Nordic welfare state, whose well-known generosity is seen to be economically and politically sustainable only for insiders, hence producing a kind of "welfare chauvinism" (Kitschelt & McGann 1995). And although, as Barker (2018) shows, these exclusionary dynamics of the Nordic welfare system undoubtedly threaten a range of real harms and represent what we might think of as the less appealing underside of the communitarian dynamics of solidaristic Nordic conceptions of membership and belonging, they are nonetheless significantly different from the forms of racist, anti-migrant populism that characterize extremist parties in, for example, Austria, France, or the Netherlands. Penal nationalism, seen as "a form of state power that relies on the coercive tools and moral weight of criminal justice to respond to unwanted mobility in the service of national interests" (Barker 2018, p. 89), may most certainly threaten aspects of the rule of law including generality, publicity, and congruence, as well as the robustness of human rights. It may even produce a democratic deficit (Barker 2018, p. 138). But it is not necessarily a straightforward result of populism.

CONCLUSION

In short, populism is currently creating significant risks to the rule of law in Europe and the United States through agenda setting, policy impact, the shaping of discretionary decisions, and

convention trashing. However, the specific force of these populist dynamics is mediated by a range of contingencies in particular countries and regions: contingencies relating to social, political, and economic history and the cultural mentalities that this history has engendered; legal, political, and economic institutional frameworks; and the specific form that populism takes. The analytic tendency of populism in an anti-rule-of-law direction, then, can be only the start of any inquiry into the actual sway of populism in particular times and places, through a careful comparative study of the interaction between institutional structures and national and international context.

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